

ZEILER

PER EMAIL

ICC International Court of Arbitration

Ms Hjördis Birna Hjartardóttir

Ms Mihaela Tarnovschi

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Vienna, 14.10.2025

SVELCINV/11001

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*admitted in | zugelassen in

**not admitted as attorney | nicht als Rechtsanwalt zugelassen

ICC Case 29534/ICA3 - ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria) 2. INVICTUS CABLE GMBH (Austria) 3. INVICTUS HOLDING IC GMBH (Austria)

Dear Ms Hjartardóttir,

Dear Ms Tarnovschi,

I refer to the Secretariat's correspondence of 8 October 2025 inviting Respondents and the sole arbitrator to comment on Claimant's challenge of the sole arbitrator pursuant to Article 14 of the Rules.

I understand that Claimant bases their challenge neither on an alleged lack of impartiality or independence but on other reasons referred to in Article 14(1) of the Rules as "*otherwise*". I note with thanks Claimant's confirmation that it does not question my integrity, experience or competence in general.

I further understand that Claimant's main concerns are (i) my apparent lack of the required qualifications as per the parties' arbitration agreement and (ii) my proximity to Austria and Austrian law (in contrast to English law).

First of all, for the sake of good order, I hereby again confirm that I am impartial and independent from the parties and intend to remain so.

Second, I consider that I have the qualifications the parties in principle agreed on as set out in the Secretariat's correspondence dated 25 July 2025. I will address each of the agreed items in turn:

- (i) **experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and complex financial issues (ideally financial understanding sufficient to comprehend accounting issues and expert**

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evidence related to EBITDA calculations, financial statement analysis and valuation methodology);

In relation to my general experience in international commercial arbitration I refer to my CV.

In relation to the specific experience mentioned in item 1 of the Secretariat's letter of 25 July 2025, I note as follows:

I have dealt with joint venture disputes from the perspective of the arbitral tribunal, as counsel (in litigation) and when scrutinizing numerous draft awards in my capacity as counsel at the ICC Secretariat. Similarly, I have broad experience with disputes arising out of shareholder agreements. In addition, in the context of my advisory work, I was involved in drafting of and advising on shareholders agreements.

Since I returned to private practice (in 2022) after having worked for several years at the Secretariat, I am constantly involved in complex financial disputes, e.g.

- a dispute about a several million worth mezzanine funding (ICC arbitration);
- a trade finance dispute (ICC arbitration);
- disputes about different complex structured finance transactions (several ICC arbitrations);
- disputes about the exercise of put-options in the context of larger structured finance projects (LCIA arbitrations);
- a dispute about a bank guarantee under German law (ICC EA proceedings).

Against this background and due to my general experience in corporate law (disputes and advisory) as well as post-MA disputes, I am confident that I have sufficient financial understanding in order to comprehend accounting issues and expert evidence related to EBITDA calculations, financial statement analysis and valuation methodology.

(ii) previous experience with both Austrian and English law applicable; • fluency in English;

As indicated in my CV, I am trained and qualified in Germany but also admitted to the Austrian bar. I have extensive experience in Austrian law (having worked as attorney in Austria between 2007 and 2015 and again since 2022).

Although not qualified in England, I have experience with English substantive and procedural law, in particular in the context of finance projects:

- I acted as counsel in an ICC arbitration about a facility agreement between an Ugandan and a South African party under Ugandan substantive law with the place of arbitration being London, UK.
- I acted as counsel in an ICC arbitration about a trade finance matter under English law with the place of arbitration being London, UK.
- As part of an otherwise English counsel team, I advised a major European energy company in a significant structured finance transaction with an African counterparty under English law including drafting facility, security and other agreements.
- As part of an otherwise English counsel team, I advised a major European energy company in a structure finance transaction with an Asian counterparty under English law including drafting facility, security and other agreements.
- I advised a major European energy company in several trade finance matters under English law.
- I act as counsel in an LCIA arbitration about the exercise of a put-option with the place of arbitration being London, UK.

- (iii) **availability to conduct the arbitration efficiently in light of the time sensitive nature of the dispute.**

My availability is as indicated in my SAAll and I confirm that I will remain available to conduct the arbitration efficiently.

I further note that while my place of business is Vienna, Austria, I am physically based in Paris, France. When having worked at the Secretariat in Paris, I had the opportunity to deal with numerous cases with the place of arbitration being Paris, France.

Kind regards

A handwritten signature in black ink, appearing to read 'F. Schäfer', with a stylized flourish at the end.

Friederike Schäfer